

FORMAL COMPLAINT AND RESPONSE TO NOTICE OF VIOLATION

From: Marcus J. Holloway

To: Northridge Code Enforcement Board

Re: Case CE-2026-04831 — Notice of Violation dated March 12, 2026

Date: March 18, 2026

To the Honorable Members of the Code Enforcement Board,

I am writing to formally dispute the Notice of Violation issued on March 12, 2026 regarding my property at 742 Evergreen Terrace. I believe this notice was issued in error and contains several material inaccuracies that I wish to bring to the Board's attention.

1. The shed is exempt from permitting requirements.

The structure in question was built in 2017 by the previous owner, well before the enactment of NMC Chapter 8.12 in 2020. Section 8.12.045(c) explicitly exempts structures that were in place prior to the ordinance's effective date. I have attached the original 2017 property inspection report showing the shed existed at the time of purchase.

2. The fence encroachment finding is contradicted by the recorded survey.

The City's own survey appears to reference an outdated 1998 plat map. A 2023 ALTA survey conducted during my refinance (attached) clearly shows the fence is 0.3 feet *inside* my property line, not 2.4 feet over it. I request that the Board order a new joint survey.

3. The fine calculation does not match the code.

Per NMC § 1.04.020, the base fine for a first-time violation of § 8.12.045 is \$500, not \$2,500 as stated in the notice. The late penalty of \$750 also appears to be unauthorized since the 30-day correction period has not yet expired. The total amount demanded (\$4,750) appears to exceed the statutory maximum.

4. Concerning conduct by the inspector.

During the March 10 inspection, Inspector Vasquez refused to allow me to present documentation showing the shed pre-dated the ordinance. She stated she would 'make this easy' if I would 'just cooperate.' The following day, I received a phone call from a person identifying himself as 'a friend of the Inspector' offering to resolve the matter for a 'processing fee' of \$2,000. I have reported this matter to the City Ombudsman.

Relief Requested:

1. Dismissal of all violations with prejudice
2. A formal apology from the Code Enforcement Department
3. Reimbursement of any fees incurred in responding to this erroneous notice

I am prepared to present all documentation at the April 28 hearing. I respectfully request that the Board review this matter before that date.

Respectfully,

Marcus J. Holloway
742 Evergreen Terrace
Northridge, CA 91324
(818) 555-0147